Supply Agreement

This Supply Agreement (the "Agreement") is made on 9 September 2024 between Aster Example Systems Ltd, of 1 Starling Court, Halden City (the "Supplier"), and Meridian Example Foods plc, of 55 Granary Wharf, Saltmere (the "Customer").

1. Supply

1.1 The Supplier shall supply the packaging control systems listed in Schedule 1 (the "Products") in accordance with the Customer's purchase orders.

2. Exclusivity

2.1 For five (5) years from the date of this Agreement, the Supplier shall not supply the Products, or any products substantially similar to them, to any competitor of the Customer in the food packaging sector.

3. Most Favoured Customer

3.1 The Supplier shall ensure that the prices it charges the Customer for the Products are no higher than the prices it charges any other customer for the same or similar products in similar volumes. If the Supplier offers lower prices to another customer, it shall offer the same prices to the Customer from the same date.

4. Term

4.1 This Agreement continues for five (5) years from the date of this Agreement unless ended earlier under clause 9.

5. Delivery

5.1 The Supplier shall deliver the Products to the Customer's sites on the dates in each purchase order. Time of delivery is of the essence.

6. Price and Payment

6.1 The Customer shall pay each undisputed invoice within forty-five (45) days.

7. Warranty

7.1 The Supplier warrants that the Products will be free from defects in design, materials and workmanship for twenty-four (24) months from delivery.

8. Limitation of Liability

8.1 The Supplier's total liability under this Agreement in any year shall not exceed two million pounds sterling (GBP 2,000,000).

8.2 The Supplier shall indemnify the Customer against all losses arising from any recall of the Products caused by a defect in the Products. This indemnity is subject to the limit in clause 8.1.

9. Termination

9.1 Either party may terminate this Agreement by written notice if the other party commits a material breach and does not remedy it within thirty (30) days.

9.2 If the Supplier undergoes a change of control without the Customer's prior written consent, the Customer may terminate this Agreement immediately by written notice.

10. Assignment

10.1 Neither party may assign or subcontract any of its rights or obligations under this Agreement without the prior written consent of the other party.

11. Governing Law

11.1 This Agreement is governed by the laws of England and Wales.

Signed for Aster Example Systems Ltd: H. Example, Director. Signed for Meridian Example Foods plc: I. Example, Procurement Director.